

CHICKASAW TRIBAL LEGISLATURE

PASSED

**Permanent Resolution Number 18-015
Amendments to Title 8, Chapter 4
of the Chickasaw Nation Code
(Conduct of an Election)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has reviewed Title 8, Chapter 4 of the Chickasaw Nation Code and finds it necessary to amend said Title and Chapter to help promote clarity.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves the following amendments to Title 8, Chapter 4 of the Chickasaw Nation Code. Additions will be shown in shading and deletions will be shown as stricken. All other Sections of Title 8, Chapter 4 are not affected by this resolution.

SECTION 8-402 BALLOT MAILING TO VOTERS.

A. Official ballots shall be mailed to each qualified ~~absentee~~ voter on the first Monday of August; provided, however, that all qualified ~~absentee~~ voters who reside outside of the contiguous 48 states shall be mailed their ballots two weeks prior to the first Monday in August. The names on the outgoing envelopes should be the same as appears on the voter registration application.

SECTION 8-411 UNDELIVERABLE BALLOTS.

Ballots returned by the Post Office as undeliverable due to change of address, death, or any other reason, shall be tabulated as "Undeliverable" and listed on the certified election returns and will not be counted as "invalid". ~~Undeliverable ballots should be kept separately from other valid ballots at the post office and picked up on ballot counting day.~~ The Election Secretary/Tribal Registrar shall be responsible for developing and maintaining the "undeliverable ballot" list. No ballots for future elections shall be mailed to names on this list until the address correction has been made by the voter.

SECTION 8-429 RUNOFF ELECTION.

If no candidate receives more than fifty percent (50%) of the total votes, there will be a runoff

February 16, 2001

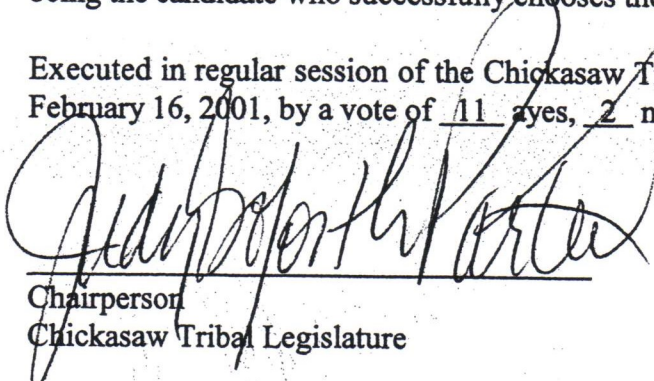
election. The two (2) candidates receiving the most votes will qualify for the runoff election.

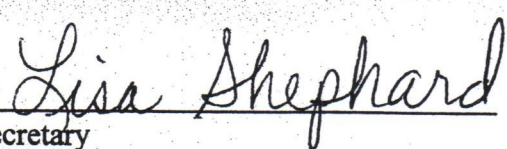
However, should the counting results show a tie for the second highest total between two (2) candidates, a recount shall be conducted for those two (2) candidates. In this case, no fee shall be charged to the candidates for the recount. If there is still a tie between these two (2) candidates after the recount, the Election Commission shall then ~~decide~~ select the winner electee by the toss of a coin, a fair lot and in such manner as the Election Commission may select. The winner being the candidate candidates who successfully chooses the side landing face up, involved may be present if they so desire.

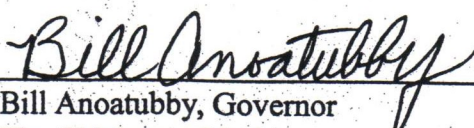
SECTION 8-430 RUNOFF ELECTION PROCEDURES.

The runoff election ballots shall be sent to voters on the first Tuesday of September in the year of the election. The ballots must be returned by the third ~~Tuesday~~ Wednesday in September, no later than 10:30 a.m., and shall be counted on the following same day (Wednesday) at the same location and under the same procedures and regulations as those used in the regular election. Results shall be ~~certified and~~ announced on Wednesday after the ballots are counted and shall be certified under regular election rules, starting at about 10:30 a.m. The successful runoff candidate must receive more than fifty percent (50%) of the total votes in order to be duly elected. If the canvas of the tally of results of a runoff election reveal that the two (2) runoff candidates have received the same number of votes, the Election Commission shall conduct a recount of all the ballots. No fee for such recount shall be charged to the runoff candidates. Should a tie exist at the completion of the recount, the Election Commission shall decide the winner by the toss of a coin. The winner being the candidate who successfully chooses the side landing facing up.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on February 16, 2001, by a vote of 11 ayes, 2 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: FEB 21 2001

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Explanation: This resolution approves of amendments to Title 8, Chapter 4 to improve clarity.

Requested By: Legislative Committee

Presented By: Lisa Shephard, Chairman
Legislative Committee